

Line 6

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

SANDRA DIAZ-KELLY AND JULIAN KELLY,

Plaintiffs,

v.

FLOWERS BAKING CO. OF MODESTO, LLC
AND DOES 1 TO 50,

Defendants.

Case No. 24CV434653

**ORDER GRANTING DEFENDANT'S
MOTIONS TO COMPEL RESPONSES TO
WRITTEN DISCOVERY AND TO DEEM
MATTERS IN REQUESTS FOR
ADMISSION ADMITTED**

Defendant Flowers Banking Co. of Modesto, LLC's motion to compel Plaintiffs' responses to written discovery requests and motion to have matters in requests for admission be deemed admitted came on for hearing before the Court on April 3, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on April 2, 2025.

Notice of these motions was served on Plaintiffs by electronic mail on February 28, 2025. Plaintiffs failed to oppose the motions. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.) There is also good cause to grant these motions.

Defendant served form interrogatories (set one), special interrogatories (set one), requests for admission (set one), and requests for production of documents (set one) on October 22, 2024.

1 Defendant granted Plaintiffs numerous extensions, but Plaintiffs still failed to respond. In fact, as of
2 the date of this tentative ruling, Plaintiffs have taken no action to address these discovery issues.

3 Accordingly, Defendant's motions are GRANTED.

4 1. Within ten (10) days of the service date of the formal order, Plaintiffs are ordered to serve
5 verified, code compliant written responses to the following discovery requests without objections:

6 (a) Defendant's Special Interrogatories (Set One) to Plaintiff Sandra Diaz-Kelly

7 (b) Defendant's Form Interrogatories (Set One) to Plaintiff Sandra Diaz-Kelly

8 (c) Defendant's Request for Production of Documents (Set One) to Plaintiff Sandra Diaz-Kelly

9 (d) Defendant's Special Interrogatories (Set One) to Plaintiff Julian Kelly

10 (e) Defendant's Form Interrogatories (Set One) to Plaintiff Julian Kelly

11 (f) Defendant's Request for Production of Documents (Set One) to Plaintiff Julian Kelly

12 2. The matters set forth in the requests for admission attached as Exhibit A to Defendant's
13 notice of motion and motion deeming truth of facts are deemed admitted and conclusively
14 established for all purposes in this action.

15 3. Plaintiffs are ordered jointly and severally to pay a total of \$1,447.50 to Defendants within
16 thirty (30) days of the service date of this formal order.

17
18 **IT IS SO ORDERED.**

19
20
21 Date: _____

22 _____
23 Hon. Evette D. Pennypacker
24 Santa Clara Superior Court Judge
25
26
27
28

Line 8

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

CAMPBELL HIGH SCHOOL TEACHERS
ASSOCIATION, CTA/NEA,

Petitioner,

v.

CAMPBELL UNION HIGH SCHOOL
DISTRICT,

Respondent.

Case No. 24CV453762

**ORDER GRANTING CAMPBELL HIGH
SCHOOL TEACHERS ASSOCIATION,
CTA/NEA'S PETITION TO COMPEL
ARBITRATION**